



Agricultural Holdings (Notices to Quit) Act 1977

1977 CHAPTER 12

An Act to consolidate sections 23 to 33 of the Agricultural Holdings Act 1948 and certain other enactments relating to notices to quit agricultural holdings in England and Wales and related notices.

[30th March 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Notices to quit whole or part of agricultural holding

1.—(1) A notice to quit an agricultural holding or part of an agricultural holding shall (notwithstanding any provision to the contrary in the contract of tenancy of the holding) be invalid if it purports to terminate the tenancy before the expiration of 12 months from the end of the then current year of tenancy.

Length of notice to quit ordinarily needed to end tenancy of agricultural holding.

(2) Subsection (1) above shall not apply—

- (a)** where a receiving order in bankruptcy is made against the tenant ;
- (b)** to a notice given in pursuance of a provision in the contract of tenancy authorising the resumption of possession of the holding or some part thereof for some specified purpose other than the use of the land for agriculture ;
- (c)** to a notice given by a tenant to a sub-tenant ;

(d) where the tenancy subsists under an agreement entered into before 25th March 1947—

(i) to a notice given by or on behalf of the Secretary of State under the provisions of any agreement of tenancy, where possession of the land is required for naval, military or air force purposes; or

(ii) to a notice given by a corporation carrying on a railway, dock, canal, water or other undertaking in respect of land acquired by the corporation for the purposes of their undertaking or by a government department or local authority, where possession of the land is required by the corporation, government department or authority for the purpose (not being the use of the land for agriculture) for which it was acquired by the corporation, department or authority or appropriated under any statutory provision;

1925 c. 20. (e) where the tenancy is one which, by virtue of subsection (6) of section 149 of the Law of Property Act 1925, has taken effect as such a term of years as is mentioned in that subsection.

(3) In the application of subsection (2)(d)(ii) above to a Board, the reference to land acquired by the corporation for the purposes of their undertaking shall be construed as including a reference to land transferred to that Board by section 31 of the Transport Act 1962 or, in the case of the London Transport Executive, by section 16 of the Transport (London) Act 1969, being land—

1962 c. 46.

1969 c. 35.

(a) acquired, for the purpose of an undertaking vested in the British Transport Commission by Part II of the Transport Act 1947, by the body carrying on that undertaking; or

1947 c. 49.

(b) acquired by a body carrying on an undertaking vested in any such undertaking as is mentioned in paragraph (a) above by virtue of an amalgamation or absorption scheme under the Railways Act 1921, being a scheme that came into operation on or after 7th July 1923,

1921 c. 55.

and the reference to the purpose for which the land was acquired or appropriated by the corporation shall be construed accordingly.

In this subsection "a Board" means any of the following namely the British Railways Board, the British Transport

Docks Board, the British Waterways Board and the London Transport Executive.

(4) Where, by virtue of an Act (whether public general or local) passed, or an instrument having effect under an Act made, after 7th July 1923 and before 30th July 1948, any right of a corporation carrying on a water undertaking or of a local authority to avail itself of the benefit conferred by section 25(2)(b) of the Agricultural Holdings Act 1923 was transferred to some other person, that other person shall have the like right to avail himself of the benefit conferred by subsection (2)(d)(ii) above as the corporation or authority would have had if the Act or instrument by virtue of which the transfer was effected had not been passed or made. 1923 c. 9.

2.—(1) Where—

- (a) notice to quit an agricultural holding or part of an agricultural holding is given to the tenant thereof; and
- (b) not later than one month from the giving of the notice to quit the tenant serves on the landlord a counter-notice in writing requiring that this subsection shall apply to the notice to quit,

Restriction on operation of notices to quit agricultural holdings.

then, subject to subsection (2) below, the notice to quit shall not have effect unless the Tribunal consent to its operation.

(2) Subsection (1) above shall not apply in any of the Cases set out in subsection (3) below.

(3) Those Cases are—

Case A—the Tribunal have consented under this section to the operation of the notice to quit before the giving of it, and that fact is stated in the notice.

Case B—the notice to quit is given on the ground that the land is required for a use, other than for agriculture—

(a) for which permission has been granted on an application made under the enactments relating to town and country planning; or

(b) for which, otherwise than by virtue of any provision of those enactments, such permission is not required,

and that fact is stated in the notice.

Case C—on an application under subsection (4) below

made to the Tribunal not more than six months before the giving of the notice to quit, the Tribunal—

(a) were satisfied in relation to the holding that the tenant was not fulfilling his responsibilities to farm in accordance with the rules of good husbandry; and

(b) certified that they were so satisfied, and that fact is stated in the notice.

Case D—at the date of the giving of the notice to quit the tenant had failed to comply with a notice in writing served on him by the landlord, being either—

(a) a notice requiring him within two months from the service of the notice to pay any rent due in respect of the agricultural holding to which the notice to quit relates; or

(b) a notice requiring him within a reasonable period specified in the notice to remedy any breach by the tenant that was capable of being remedied of any term or condition of his tenancy which was not inconsistent with the fulfilment of his responsibilities to farm in accordance with the rules of good husbandry,

and it is stated in the notice to quit that it is given by reason of the matter aforesaid.

For the purposes of this Case—

(i) a notice such as is mentioned in paragraph (b) above must be in the prescribed form;

(ii) where such a notice in the prescribed form requires the doing of any work of repair, maintenance or replacement, any further notice requiring the doing of any such work which is served on the tenant less than twelve months after the earlier notice shall be disregarded, unless the earlier notice was withdrawn with his agreement in writing; and

(iii) a period of less than six months shall not be treated as a reasonable period within which to do any such work.

Case E—at the date of the giving of the notice to quit the interest of the landlord in the agricultural holding to

which the notice relates had been materially prejudiced by the commission by the tenant of a breach, which was not capable of being remedied, of any term or condition of the tenancy that was not inconsistent with the fulfilment by the tenant of his responsibilities to farm in accordance with the rules of good husbandry, and it is stated in the notice that it is given by reason of the matter aforesaid.

Case F—at the date of the giving of the notice to quit the tenant was a person who had become bankrupt or compounded with his creditors, and it is stated in the notice that it is given by reason of the matter aforesaid.

Case G—there had died within three months before the date of the giving of the notice to quit a person who immediately before his death was the sole (or sole surviving) tenant under the contract of tenancy, and it is stated in the notice that it is given by reason of the matter aforesaid.

For the purposes of this Case “tenant” does not include an executor, administrator, committee of the estate, trustee in bankruptcy or other person deriving title from a tenant by operation of law.

Case H—the notice to quit is given by the appropriate Minister and—

(a) the appropriate Minister certifies in writing that the notice to quit is given in order to enable him to use or dispose of the land for the purpose of effecting any amalgamation (within the meaning of section 26(1) of the Agriculture Act 1967) or the reshaping 1967 c. 22 of any agricultural unit ; and

(b) the instrument under which the tenancy was granted contains an acknowledgement signed by the tenant that the tenancy is subject to the provisions of this Case (or to those of section 29 of the Agriculture Act 1967).

In this Case “the appropriate Minister” means, in relation to England, the Minister and, in relation to Wales, the Secretary of State.

(4) For the purposes of Case C the landlord of an agricultural holding may apply to the Tribunal for a certificate that the tenant is not fulfilling his responsibilities to farm in accordance with the rules of good husbandry; and the Tribunal, if satisfied that the tenant is not fulfilling his said responsibilities, shall grant such a certificate.

(5) Where—

- (a) the landlord is a smallholdings authority ; or
- (b) the landlord is the Minister and the holding is on land held by him for the purposes of smallholdings,

then, in considering whether the interest of the landlord has been materially prejudiced as mentioned in Case E, regard shall be had to the effect of the breach in question not only on the holding itself but also on the carrying out of the arrangements made by the smallholdings authority or the Minister (as the case may be) for the letting and conduct of smallholdings.

(6) Different forms may be prescribed for the purpose of paragraph (b) of Case D in relation to different circumstances.

Tribunal's
consent
under s. 2 to
operation of
notice to quit.

3.—(1) Subject to subsection (2) below, the Tribunal shall consent under section 2 above to the operation of a notice to quit an agricultural holding or part of an agricultural holding if, but only if, they are satisfied as to one or more of the matters mentioned in subsection (3) below, being a matter or matters specified by the landlord in his application for their consent.

(2) Even if they are satisfied as mentioned in subsection (1) above, the Tribunal shall withhold consent under section 2 above to the operation of the notice to quit if in all the circumstances it appears to them that a fair and reasonable landlord would not insist on possession.

(3) The matters referred to in subsection (1) above are—

- (a) that the carrying out of the purpose for which the landlord proposes to terminate the tenancy is desirable in the interests of good husbandry as respects the land to which the notice relates, treated as a separate unit ;
- (b) that the carrying out thereof is desirable in the interests of sound management of the estate of which the land to which the notice relates forms part or which that land constitutes ;
- (c) that the carrying out thereof is desirable for the purposes of agricultural research, education, experiment or demonstration, or for the purposes of the enactments relating to smallholdings or allotments ;
- (d) that greater hardship would be caused by withholding than by giving consent to the operation of the notice ;
- (e) that the landlord proposes to terminate the tenancy for the purpose of the land's being used for a use, other than for agriculture, not falling within Case B.

(4) Where the Tribunal consent under section 2 above to the operation of a notice to quit, they may impose such conditions

as appear to them requisite for securing that the land to which the notice relates will be used for the purpose for which the landlord proposes to terminate the tenancy.

(5) Where, on an application by the landlord in that behalf, the Tribunal are satisfied that, by reason of any change of circumstances or otherwise, any condition imposed under subsection (4) above ought to be varied or revoked, they shall vary or revoke the condition accordingly.

4.—(1) Subsections (2) to (4) below shall apply where—

- (a) notice to quit an agricultural holding or part of an agricultural holding is given to the tenant thereof; and
- (b) the notice includes a statement in accordance with Case D to the effect that it is given by reason of the tenant's failure to comply with a notice to do work.

Additional restrictions on operation of notice to quit given by reason of tenant's non-compliance with notice to do work.

(2) If not later than one month from the giving of the notice to quit the tenant serves on the landlord a counter-notice in writing requiring that this subsection shall apply to the notice to quit, the notice to quit shall not have effect (whether as a notice to which section 2(1) above does or does not apply) unless the Tribunal consent to the operation thereof:

Provided that a counter-notice under this subsection shall be of no effect if within one month after the giving of the notice to quit the tenant serves on the landlord an effective notice requiring the validity of the reason stated in the notice to quit to be determined by arbitration under the 1948 Act.

(3) Where—

- (a) the tenant has not later than one month from the giving of the notice to quit served on the landlord an effective notice requiring the validity of the reason stated in the notice to quit to be determined by arbitration under the 1948 Act; and
- (b) the notice to quit would, apart from this subsection, have effect in consequence of the arbitration,

then, if not later than one month from the date on which the arbitrator's award is delivered to the tenant the tenant serves on the landlord a counter-notice in writing requiring that this subsection shall apply to the notice to quit, the notice to quit shall not have effect (whether as a notice to which section 2(1) above does or does not apply) unless the Tribunal consent to the operation thereof.

(4) On an application made in that behalf by the landlord, the Tribunal shall consent under subsection (2) or (3) above to the operation of the notice to quit unless in all the circum-

stances it appears to them that a fair and reasonable landlord would not insist on possession.

(5) In this section "notice to do work" means a notice served on a tenant of an agricultural holding for the purposes of paragraph (b) of Case D requiring him to remedy a breach of a term or condition of his tenancy, being a notice requiring the doing of any work of repair, maintenance or replacement.

Provisions
supplementary
to ss. 2 to 4.

5.—(1) The Lord Chancellor may by order provide—

(a) for—

(i) requiring any question arising under the provisions of section 2(2) and (3) above to be determined by arbitration under the 1948 Act;

(ii) limiting the time within which any such arbitration may be required or any proceedings for the purposes thereof may be taken; and

(iii) extending the period within which a counter-notice may be given by the tenant under section 2(1) above where any such arbitration is required;

(b) for suspending the operation of notices to quit until the termination of any such arbitration as aforesaid;

(c) for postponing the date at which a tenancy is to be terminated by a notice to quit which has effect in consequence of any such arbitration as aforesaid or of an application under section 2 (except subsection (4)) or section 4(2) or (3) above or under provisions made by virtue of paragraph (i) below;

(d) for—

(i) excluding the application of section 2(1) above in relation to sub-tenancies in such cases as may be specified in the order; and

(ii) for making such provision as appears to the Lord Chancellor expedient for the purpose of safeguarding the interests of sub-tenants, including provision enabling the Tribunal, where the interest of a tenant is terminated by notice to quit, to secure that a sub-tenant will hold from the landlord on the like terms as he held from the tenant;

(e) for the determination by arbitration under the 1948 Act of any question arising under such a notice as is mentioned in paragraph (b) of Case D, being a notice requiring the doing of any work of repair, maintenance or replacement (including the question whether the notice is capable of having effect for the purposes of that Case);

- (f) for enabling the arbitrator, on an arbitration under the 1948 Act relating to such a notice as is mentioned in paragraph (e) above, to modify the notice—

(i) by deleting therefrom any item or part of an item of work specified in the notice as to which, having due regard to the interests of good husbandry as respects the agricultural holding to which the notice relates and of sound management of the estate of which that holding forms part or which that holding constitutes, the arbitrator is satisfied that it is unnecessary or unjustified ; or

(ii) by substituting, in the case of any item or part of an item of work so specified, a different method or material for the method or material which the notice would otherwise require to be followed or used where, having regard to the purpose which that item or part is intended to achieve, the arbitrator is satisfied that the last-mentioned method or material would involve undue difficulty or expense, that the first-mentioned method or material would be substantially as effective for that purpose, and that in all the circumstances the substitution is justified ;

- (g) for enabling the time within which anything is to be done in pursuance of such a notice as is mentioned in paragraph (b) of Case D to be extended or to be treated as having been extended ;
- (h) for enabling a tenancy, in a case where that time is extended, to be terminated either by a notice to quit served less than twelve months before the date on which it is to be terminated, or at a date other than the end of a year of the tenancy, or both by such a notice and at such a date ;
- (i) for securing that, where a subsequent notice to quit is given in accordance with provisions made by virtue of paragraph (h) above in a case where the original notice to quit fell within section 4(1) above, then, if the tenant serves on the landlord a counter-notice in writing within one month after the giving of the subsequent notice to quit (or, if the date specified in that notice for the termination of the tenancy is earlier, before that date), the subsequent notice to quit shall not have effect unless the Tribunal consent to the operation thereof, and for applying section 4(4) above as regards the giving of that consent ;
- (j) for the recovery by a tenant of the cost of any work which is done by him in compliance with a notice

requiring him to do it, but which is found by arbitration under the 1948 Act to be work which he was not under an obligation to do.

(2) The power to make orders conferred on the Lord Chancellor by this section—

- (a) shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament; and
- (b) shall include power, exercisable in the like manner, to revoke or vary any order made thereunder.

Penalty for
breach of
condition
imposed
under s. 3.

6.—(1) Where—

- (a) on giving consent under section 2 above to the operation of a notice to quit an agricultural holding or part of an agricultural holding, the Tribunal imposed a condition under section 3(4) above for securing that the land to which the notice to quit related would be used for the purpose for which the landlord proposed to terminate the tenancy; and
- (b) it is proved on an application to the Tribunal on behalf of the Crown—
 - (i) that the landlord has failed to comply with the condition within the period allowed thereby; or
 - (ii) that the landlord has acted in contravention of the condition,

the Tribunal may by order impose on the landlord a penalty of an amount not exceeding two years' rent of the holding at the rate at which rent was payable immediately before the termination of the tenancy, or, where the notice to quit related to a part only of the holding, of an amount not exceeding the proportion of the said two years' rent which it appears to the Tribunal is attributable to that part.

(2) A penalty imposed under this section shall be a debt due to the Crown and shall, when recovered, be paid into the Consolidated Fund.

(3) The Tribunal may, in proceedings under this section, by order provide for the payment by any party of such sum as the Tribunal consider a reasonable contribution towards costs.

(4) An order under this section shall be enforceable in the same manner as a judgment or order of the county court to the like effect.

Agreement by
landlord to sell
agricultural
holding while
notice to quit
is current.

7.—(1) Subsections (2) and (3) below shall have effect where notice to quit land being or comprised in an agricultural holding is given to the tenant and at any time while the notice is current a contract is made for the sale of the landlord's interest in the land or any part thereof.

(2) Unless within the period of three months ending with the making of the contract the landlord and the tenant have agreed in writing whether on the making of such a contract the notice shall continue in force or be of no effect—

- (a) the landlord shall before the expiration of the prescribed period from the making of the contract, or, where the notice to quit expires within the last-mentioned period, before the expiration of the notice to quit, give notice in writing to the tenant of the making of the contract ; and
- (b) the tenant may before the expiration of the notice to quit (but not after the expiration of one month from the receipt by him of a notice under the preceding paragraph of the making of the contract) notify the landlord in writing that the tenant elects that the notice to quit shall continue in force.

(3) In default of any such agreement or notification as aforesaid the notice to quit shall be of no effect unless—

- (a) the landlord has failed duly to give notice of the making of the contract ; and
- (b) the tenant quits the holding in consequence of the notice to quit.

(4) A notice to quit shall not be invalid by reason only that under any such agreement as aforesaid the operation of the notice is conditional.

Notices to quit part of agricultural holding

8.—(1) A notice to quit part of an agricultural holding held on a tenancy from year to year given by the landlord of the holding shall not be invalid on the ground that it relates to part only of the holding if it is given—

Notice to quit part of agricultural holding not invalid in certain cases.

- (a) for the purpose of adjusting the boundaries between agricultural units or amalgamating agricultural units or parts thereof ; or
- (b) with a view to the use of the land to which the notice relates for any of the objects mentioned in the following subsection,

and the notice states that it is given for the said purpose or with a view to any such use as aforesaid, as the case may be.

(2) The objects referred to in the preceding subsection are—

- (a) the erection of farm labourers' cottages or other houses with or without gardens ;
- (b) the provision of gardens for farm labourers' cottages or other houses ;

1970 c. 40.

- (c) the provision of allotments ;
- (d) the letting of the land (with or without other land) as a smallholding under Part III of the Agriculture Act 1970 ;
- (e) the planting of trees ;
- (f) the opening or working of a deposit of coal, ironstone, limestone, brick-earth or other mineral, or a stone quarry or a clay, sand or gravel pit, or the construction of any works or buildings to be used in connection therewith ;
- (g) the making of a watercourse or reservoir ;
- (h) the making of a road, railway, tramroad, siding, canal or basin, or a wharf, pier, or other work connected therewith.

Tenant's
right to treat
notice to quit
part of
agricultural
holding as
notice to
quit entire
holding.

9.—(1) Where there is given to the tenant of an agricultural holding a notice to quit part of the holding, being either—

- (a) such a notice as is rendered valid by section 8 above ; or
- (b) a notice given by a person entitled to a severed part of the reversionary estate in the holding,

subsection (2) below shall apply.

(2) If—

- (a) within twenty-eight days after the giving of the notice ;
or
- (b) where the operation of the notice depends on any proceedings under the preceding provisions of this Act, within twenty-eight days after the time at which it is determined that the notice has effect,

the tenant gives to the landlord or (as the case may be) to the persons severally entitled to the severed parts of the reversion a counter-notice in writing to the effect that he accepts the notice to quit as a notice to quit the entire holding given by the landlord or (as the case may be) those persons, to take effect at the same time as the original notice, the notice to quit shall have effect accordingly.

Reduction of
rent where
notice is given
to quit part of
agricultural
holding.

10.—(1) Where the landlord of an agricultural holding resumes possession of part of the holding either—

- (a) by virtue of section 8(1) above ; or
- (b) in pursuance of a provision in that behalf contained in the contract of tenancy,

the tenant shall be entitled to a reduction of rent, of an amount to be settled by arbitration under the 1948 Act, proportionate to that part of the holding and in respect of any depreciation

of the value to him of the residue of the holding caused by the severance or by the use to be made of the part severed.

(2) In a case falling within subsection (1)(b) above the arbitrator, in assessing the amount of the reduction, shall take into consideration any benefit or relief allowed to the tenant under the contract of tenancy in respect of the land possession of which is resumed by the landlord.

Notice to quit where tenant is a service man

11.—(1) Subsections (3) and (4) below shall have effect where— Notice to quit where tenant is a service man.

(a) the tenant of an agricultural holding to which this section applies performs a period of relevant service, other than a short period of training ; and

(b) during his period of residence protection there is given to him—

(i) notice to quit the holding; or

(ii) notice to quit a part of it to which this section applies.

(2) This section applies to—

(a) any agricultural holding which comprises such a dwelling-house as is mentioned in section 2(1)(d) of the Rent Act 1968, that is to say a dwelling-house occupied by the person responsible for the control (whether as tenant or as servant or agent of the tenant) of the farming of the holding ; and 1968 c. 23.

(b) any part of an agricultural holding, being a part which consists of or comprises such a dwelling-house.

(3) Section 2(1) above shall apply notwithstanding the existence of any such circumstances as are mentioned in Cases A to G ; but where the Tribunal are satisfied that such circumstances exist, then, subject to subsection (4) below, the Tribunal shall not be required to withhold their consent to the operation of the notice to quit by reason only that they are not satisfied that circumstances exist such as are mentioned in paragraphs (a) to (e) of section 3(3) above.

(4) In determining whether to give or withhold their consent under section 2 above the Tribunal—

(a) if satisfied that circumstances exist such as are mentioned in Cases A to G or in section 3(3) above, shall consider to what extent (if at all) the existence of those circumstances is directly or indirectly attributable to the service man's performing or having performed the period of service in question ; and

- (b) in any case, shall consider to what extent (if at all) the giving of such consent at a time during the period of protection would cause special hardship in view of circumstances directly or indirectly attributable to the service man's performing or having performed that period of service ;

and the Tribunal shall withhold their consent to the operation of the notice to quit unless in all the circumstances they consider it reasonable to give their consent thereto.

(5) Where the tenant of an agricultural holding to which this section applies performs a period of relevant service, other than a short period of training, and—

- (a) a notice to quit the holding, or a part of it to which this section applies, is given to him before the beginning of his period of residence protection ; and
- (b) the tenant duly serves a counter-notice under section 2(1) above ; and
- (c) the Tribunal have not before the beginning of his period of residence protection decided whether to give or withhold consent to the operation of the notice to quit,

subsection (4) above shall (with the necessary modifications) apply in relation to the giving or withholding of consent to the operation of the notice to quit as it applies in relation to the giving or withholding of consent to the operation of a notice to quit given in the circumstances mentioned in subsection (1) above.

(6) The Lord Chancellor's powers under section 5(1)(a) to (d) above shall apply in relation to the provisions of sections 2 and 3 above as modified by the preceding provisions of this section as they apply in relation to the provisions of those sections apart from this section.

(7) The Lord Chancellor may make regulations—

- (a) for enabling a counter-notice under section 2(1) above to be served on behalf of a service man at a time when he is serving abroad, in a case where a notice to quit is given to him as mentioned in subsection (1) above ; and
- (b) for enabling any act or proceedings consequential upon the service of a counter-notice under section 2(1) above to be performed or conducted on behalf of a service man at a time when he is serving abroad, either in such a case as is mentioned in paragraph (a) above or in a case where subsection (5) above applies in relation to him.

References in this subsection to a time when a service man is serving abroad are references to a time when he is performing a period of relevant service and is outside the United Kingdom.

(8) Regulations under subsection (7) above may contain such incidental and consequential provisions as appear to the Lord Chancellor to be necessary or expedient for the purposes of the regulations.

(9) The power to make regulations under subsection (7) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(10) In this section—

“the 1951 Act” means the Reserve and Auxiliary Forces 1951 c. 65. (Protection of Civil Interests) Act 1951;

“period of residence protection” in the case of a service man who performs a period of relevant service, other than a short period of training, means the period comprising that period of service and the four months immediately following the date on which it ends;

“relevant service” means service (as defined in section 64(1) of the 1951 Act) of a description specified in Schedule 1 to that Act;

“service man” means a man or woman who performs a period of relevant service;

“short period of training” has the meaning given by section 64(1) of the 1951 Act.

12.—(1) In this Act—

Interpretation.

“the 1948 Act” means the Agricultural Holdings Act 1948 c. 63. 1948;

“Case A”, “Case B” (and so on) refer severally to the Cases set out and so named in section 2(3) above;

“the Tribunal” means the Agricultural Land Tribunal.

(2) Except where the context otherwise requires—

(a) this Act and the 1948 Act shall each be construed as if the provisions of this Act were contained in that Act; and

(b) any reference in this Act to an enactment is a reference to it as amended, and includes a reference to it as applied, by or under any other enactment, including this Act.

Consequential
amendments,
repeals and
savings.

13.—(1) Subject to section 14 below, the enactments specified in Schedule 1 to this Act shall have effect subject to the amendments there specified, being amendments consequential upon the provisions of this Act.

(2) Subject to section 14 below, the enactments specified in Schedule 2 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) In so far as any instrument made, any notice served or given, or any other thing done, under or by virtue of any enactment repealed by this Act could have been made, served, given or done under or by virtue of a corresponding enactment in this Act, it shall not be invalidated by the repeal effected by this section but shall have effect as if it had been made, served, given or done under or by virtue of that corresponding enactment.

(4) Without prejudice to subsection (1) above, any enactment or other document whatever referring to any enactment repealed by this Act shall, as far as may be necessary for preserving its effect, be construed as referring (or including a reference) to the corresponding enactment in this Act.

1889 c. 63.

(5) Nothing in the preceding provisions of this section shall prejudice the general application of section 38 of the Interpretation Act 1889 (which relates to repeals).

Provisions as
to notices
to quit
served before
commence-
ment of Act.

14.—(1) Nothing in this Act (and in particular nothing in section 13(3) or (4)) shall apply in relation to a notice to quit an agricultural holding or part of an agricultural holding given before the commencement of this Act; and accordingly the enactments repealed or amended by this Act shall, in relation to any such notice to quit which was so given, have effect as if this Act had not been passed.

(2) In the case of any such notice to quit given after the commencement of this Act, subsection (1) above is without prejudice to the operation of section 13(3) and (4) above in relation to any related notice or thing served, given or done before the commencement of this Act.

Short title,
commence-
ment and
extent.

15.—(1) This Act may be cited as the Agricultural Holdings (Notices to Quit) Act 1977.

(2) This Act shall come into force on such date as the Minister of Agriculture, Fisheries and Food may by order made by statutory instrument appoint, and different dates may be appointed under this subsection for section 4 and for the provisions of this Act other than that section (in which case the date appointed for section 4 must be the later of the two).

(3) This Act does not extend to Scotland or Northern Ireland.

SCHEDULES

SCHEDULE 1

Section 13

CONSEQUENTIAL AMENDMENTS

Agricultural Holdings Act 1948 (c. 63)

1.—(1) The 1948 Act shall be amended as follows.

(2) In section 8(3) proviso (iii), for “section thirty-three of this Act” substitute “section 10 of the Agricultural Holdings (Notices to Quit) Act 1977”.

(3) In section 34—

(a) in subsection (1)(b), for “section thirty-two of this Act” substitute “section 9 of the Agricultural Holdings (Notices to Quit) Act 1977”;

(b) in subsection (1) proviso, for the words from “section twenty-four” onwards substitute “section 2 of the Agricultural Holdings (Notices to Quit) Act 1977 in relation to the notice to quit the holding or part, as the case may be, is excluded by virtue of Case C, D, E, F or G in subsection (3) of that section”;

(c) in subsection (4)(a), for “section thirty-one of this Act” substitute “section 8 of the Agricultural Holdings (Notices to Quit) Act 1977”.

(4) In section 47(2)(a), for “section twenty-four or twenty-five of this Act” substitute “section 2 or 3 of the Agricultural Holdings (Notices to Quit) Act 1977”.

(5) In section 60, for “section thirty-one of this Act” substitute “section 8 of the Agricultural Holdings (Notices to Quit) Act 1977”.

(6) In section 77, at the end insert—

“(4) In relation to arbitrations under section 5(1)(a) of the Agricultural Holdings (Notices to Quit) Act 1977 subsections (2) and (3) above shall have effect with the substitution of references to the Lord Chancellor for references to the Minister.”.

Mineral Workings Act 1951 (c. 60)

2.—(1) The Mineral Workings Act 1951 shall be amended as follows.

(2) In section 22(3)—

(a) after “1948” insert “or the Agricultural Holdings (Notices to Quit) Act 1977”;

(b) for “that Act” substitute “the said Act of 1948”.

(3) In section 24, for “sections twenty-four to twenty-six of the Agricultural Holdings Act 1948” substitute “sections 2, 3 and 5 (except paragraphs (e) to (j) of section 5(1)) of the Agricultural Holdings (Notices to Quit) Act 1977”.

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Opencast Coal Act 1958 (c. 69)

3.—(1) Section 14 of the Opencast Coal Act 1958 shall be amended as follows.

(2) In subsections (2) to (4), references to the 1948 Act shall be read as including references to this Act.

(3) In subsection (5), for “paragraph (b) of subsection (2) of section twenty-four of the 1948 Act” substitute “Case B in section 2(3) of the Agricultural Holdings (Notices to Quit) Act 1977”, and for “that paragraph” substitute “that Case”.

(4) In subsection (6), for the words from “subsection (1)” to “twenty-four” substitute “section 3 of the Agricultural Holdings (Notices to Quit) Act 1977 (in which subsections (1) to (3) specify conditions for the giving of consent under section 2”, and for “that subsection” substitute “the said subsection (3)”.

Agriculture Act 1967 (c. 22)

4. For section 48(4) of the Agriculture Act 1967 substitute—

“(4) Case H in section 2(3) of the Agricultural Holdings (Notices to Quit) Act 1977 shall apply in relation to a Rural Development Board as it applies in relation to the appropriate Minister within the meaning of that Case.”.

Agriculture (Miscellaneous Provisions) Act 1968 (c. 34)

5.—(1) Section 10 of the Agriculture (Miscellaneous Provisions) Act 1968 shall be amended as follows.

(2) In subsection (1)(a), for “section 24(2)(a) of the principal Act” substitute “Case A in section 2(3) of the Agricultural Holdings (Notices to Quit) Act 1977”, and for “section 25(1)” substitute “section 3(3)”.

(3) In subsection (1)(b), for “section 25(1)” substitute “section 3(3)”, and for “section 24(1) of the principal Act” substitute “section 2(1) of the said Act of 1977”.

(4) In subsection (1)(d), for “section 24(1)” substitute “section 2(1)”, and for “section 29(4) of the Agriculture Act 1967” substitute “Case H in section 2(3) of the said Act of 1977”.

(5) In subsection (2)(a), for “section 25(1)(e) of the principal Act” substitute “section 3(3)(e) of the said Act of 1977”.

(6) In subsection (2)(b), for “section 25(1)(b)” substitute “section 3(3)(b)”, and for “section 25(1)(e)” substitute “section 3(3)(e)”.

(7) In subsection (8), for “section 25(1)(c) of the principal Act” substitute “section 3(3)(c) of the Agricultural Holdings (Notices to Quit) Act 1977”.

Land Compensation Act 1973 (c. 26)

6.—(1) The Land Compensation Act 1973 shall be amended as follows.

(2) In section 48(2)(a)—

(a) in sub-paragraph (i), for “section 24(2)(b) of the Agricultural

Holdings Act 1948" substitute "Case B in section 2(3) of the Agricultural Holdings (Notices to Quit) Act 1977";

(b) in sub-paragraph (ii), for "section 25(1)(e)" substitute "section 3(3)(e)", and for "section 24(2)(b)" substitute "the said Case B".

(3) In section 48(3), for "sections 24(2)(b), and 25(1)(e)" substitute "Case B and section 3(3)(e)".

(4) In section 59(1)(b)—

(a) for "section 24 of the Agricultural Holdings Act 1948" substitute "section 2 of the Agricultural Holdings (Notices to Quit) Act 1977";

(b) for "subsection (2)(b)" substitute "Case B in subsection (3)";

(c) for "section 25(1)(e)" substitute "section 3(3)(e)";

(d) for "section 24(2)(b)" substitute "the said Case B".

(5) In section 59(6), for "section 32 of the Agricultural Holdings Act 1948" substitute "section 9 of the Agricultural Holdings (Notices to Quit) Act 1977".

Agriculture (Miscellaneous Provisions) Act 1976 (c. 55)

7.—(1) The Agriculture (Miscellaneous Provisions) Act 1976 shall be amended as follows.

(2) In section 18—

(a) in subsection (2), after the definition of the expression "the 1948 Act" insert—

"'the 1977 Act' means the Agricultural Holdings (Notices to Quit) Act 1977;";

(b) in subsection (4)(a), for "section 24 of the 1948 Act" substitute "section 2 of the 1977 Act";

(c) in subsection (4)(b), for "section 24(2)(a), (c) or (f) of the 1948 Act" substitute "Case A, C or F in section 2(3) of the 1977 Act";

(d) in subsection (4)(c), for "section 24(2)(b), (d) or (e) of the 1948 Act" substitute "Case B, D or E in section 2(3) of the 1977 Act".

(3) In section 19, for "section 24(2)(g) of the 1948 Act" substitute "Case G in section 2(3) of the 1977 Act".

(4) In section 22(2) for "Section 25 of the 1948 Act" substitute "Section 3 of the 1977 Act", for "section 24", wherever occurring, substitute "section 2", and for "section 29" substitute "section 6".

(5) In section 23(2)(b), for "section 24(2)(g) of the 1948 Act" substitute "Case G in section 2(3) of the 1977 Act".

Section 13.

SCHEDULE 2

REPEALS

Chapter	Short title	Extent of repeal
11 & 12 Geo. 6. c. 63.	Agricultural Holdings Act 1948.	Sections 23 to 33.
14 & 15 Geo. 6. c. 65.	Reserve and Auxiliary Forces (Protection of Civil Interests) Act 1951.	Section 21. Section 22(4) to (6).
6 & 7 Eliz. 2. c. 71.	Agriculture Act 1958.	Section 3. In Schedule 1, paragraphs 8 to 13, 19, 23 and 24.
1963 c. 11.	Agriculture (Miscellaneous Provisions) Act 1963.	Section 19.
1967 c. 22. 1968 c. 23.	Agriculture Act 1967. Rent Act 1968.	Section 29(4). In Schedule 15, the paragraph amending section 21 of the Reserve and Auxiliary Forces (Protection of Civil Interests) Act 1951.
1970 c. 40.	Agriculture Act 1970.	In Schedule 4, in column 2 of the entry for the Agricultural Holdings Act 1948, the words from "In section 24" onwards.
1976 c. 55.	Agriculture (Miscellaneous Provisions) Act 1976.	Sections 11, 12, and 16. In section 27(3), the words from the beginning to "instrument appoint; and". In section 27(5), the words "11 and 12".